

File Copy



CERTIFICATE OF INCORPORATION OF A PRIVATE LIMITED COMPANY

Company Number **9542896**

The Registrar of Companies for England and Wales, hereby certifies that

OPERATION FISTULA (UK)

is this day incorporated under the Companies Act 2006 as a private company, that the company is limited by guarantee, and the situation of its registered office is in England and Wales

Given at Companies House, Cardiff, on **15th April 2015**



N09542896U

The above information was communicated by electronic means and authenticated by the Registrar of Companies under section 1115 of the Companies Act 2006



Companies House



THE OFFICIAL SEAL OF THE
REGISTRAR OF COMPANIES



Companies House

IN01(ef)

Application to register a company

Received for filing in Electronic Format on the: 10/04/2015



X450TQ0W

Company Name
in full: **OPERATION FISTULA (UK)**

I confirm that the above proposed company meets the conditions for exemption from the requirements to have a name ending with 'Limited' or permitted alternative

Company Type: **Private limited by guarantee**

Situation of Registered
Office: **England and Wales**

Proposed Register
Office Address: **10 QUEEN STREET PLACE
LONDON
UNITED KINGDOM
EC4R 1BE**

I wish to adopt entirely bespoke articles

Company Director **1**

Type: **Person**

Full forename(s): **DR FRANCE ANNA FLORA**

Surname: **DONNAY**

Former names:

Service Address: **2401 8TH AVE N
SEATTLE
WASHINGTON
USA
98109**

Country/State Usually Resident: **UNITED STATES**

Date of Birth: **08/01/1950** *Nationality:* **BELGIAN**

Occupation: **PUBLIC HEALTH**

Consented to Act: **Y** *Date authorised:* **15/04/2015** *Authenticated:* **YES**

Company Director 2

Type: **Person**
Full forename(s): **MS JESSICA BERNICE**

Surname: **PERRIN**

Former names:

Service Address: **10 QUEEN STREET PLACE
LONDON
UNITED KINGDOM
EC4R 1BE**

Country/State Usually Resident: **UNITED KINGDOM**

Date of Birth: **10/07/1984** *Nationality:* **AUSTRALIAN**
Occupation: **NFP MANAGER**

Consented to Act: **Y** *Date authorised:* **15/04/2015** *Authenticated:* **YES**

Company Director **3**

Type: **Person**
Full forename(s): **MR NICHOLAS DAVID**

Surname: **JENKINS**

Former names:

Service Address: **STOCKTON HOUSE**
 STOCKTON
 WILTSHIRE
 UNITED KINGDOM
 BA12 0SQ

Country/State Usually Resident: **UNITED KINGDOM**

Date of Birth: **13/05/1967** *Nationality:* **BRITISH**

Occupation: **COMPANY DIRECTOR**

Consented to Act: **Y** *Date authorised:* **15/04/2015** *Authenticated:* **YES**

Company Director 4

Type: **Person**

Full forename(s): **DR ANDREW ANANIE**

Surname: **ARKUTU**

Former names:

Service Address: **P.O.BOX. K.I.A. 30377
ACCRA
GHANA**

Country/State Usually Resident: **GHANA**

Date of Birth: **24/05/1936** *Nationality:* **GHANAIAAN**

Occupation: **OBSTETRICIAN/GYNAECOLOGIS
T RTD**

Consented to Act: **Y** *Date authorised:* **15/04/2015** *Authenticated:* **YES**

Statement of Guarantee

I confirm that if the company is wound up while I am a member , or within one year after I cease to be a member, I will contribute to the assets of the company by such amount as may be required for :

- payment of debts and liabilities of the company contracted before I cease to be a member;*
- payments of costs, charges and expenses of winding up, and;*
- adjustment of the rights of the contributors among ourselves, not exceeding the specified amount below.*

Name: **OPERATION FISTULA**

Address: **401 CONGRESS AVENUE
SUITE 1540
AUSTIN
TEXAS
USA
78701**

Amount Guaranteed: **£1.00**

Statement of Compliance

I confirm the requirements of the Companies Act 2006 as to registration have been complied with.

Authorisation

Authoriser Designation: **subscriber**

Authenticated: **Yes**

The Companies Act 2006

Company Limited by Guarantee and not having a Share Capital

Memorandum of Association

of

Operation Fistula (UK)

Bates Wells & Braithwaite London LLP
10 Queen Street Place
London EC4R 1BE
(Telephone: 020 7551 7777)
www.bwbllp.com

The Companies Act 2006

Company Limited by Guarantee and not having a Share Capital

Memorandum of Association of Operation Fistula (UK)

Each subscriber to this Memorandum of Association wishes to form a company under the Companies Act 2006 and agrees to become a member of the company.

Name of each subscriber

Authentication by each subscriber

Operation Fistula

Dated 10 April 2015

Company Limited by Guarantee and not having a Share Capital

**Articles of Association
of
Operation Fistula (UK)**

**Bates Wells & Braithwaite London LLP
10 Queen Street Place
London EC4R 1BE
Telephone: 020 7551 7777
www.bwbllp.com
210204/0002/001300934**

The Companies Act 2006

Company Limited by Guarantee and not having a Share Capital

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The Companies Act 2006

Company Limited by Guarantee and not having a Share Capital

Articles of Association of Operation Fistula (UK)

INTERPRETATION

1. Defined terms

The interpretation of these Articles is governed by the provisions set out in the Schedule at the end of the Articles.

OBJECTS AND POWERS

2. Objects

The objects of the Charity are for the public benefit:

- 2.1 the advancement of health and in particular, without limitation, the treatment and care of women suffering from an obstetric fistula; and
- 2.2 the advancement of education in particular, without limitation, in the subject of obstetric fistulas.

3. Powers

To further its objects the Charity may:

- 3.1 provide and assist in the provision of money, materials or other help;
- 3.2 organise and assist in the provision of conferences, courses of instruction, exhibitions, lectures and other educational activities;
- 3.3 publish and distribute books, pamphlets, reports, leaflets, journals, films, tapes and instructional matter on any medium;
- 3.4 promote, encourage, carry out or commission research, surveys, studies or other work, making the useful results available;
- 3.5 provide or procure the provision of counselling and guidance;
- 3.6 provide or procure the provision of advice;
- 3.7 alone or with other organisations seek to influence public opinion and make representations to and seek to influence governmental and other bodies and institutions regarding the reform, development and implementation of appropriate policies, legislation and regulations provided that all such activities shall be confined to those which an English and Welsh charity may properly undertake;
- 3.8 enter into contracts to provide services to or on behalf of other bodies;

- 3.9 acquire or rent any property of any kind and any rights or privileges in and over property and construct, maintain, alter and equip any buildings or facilities;
- 3.10 dispose of or deal with all or any of its property with or without payment and subject to such conditions as the Trustees think fit (in exercising this power the Charity must comply as appropriate with the Charities Act 2011);
- 3.11 borrow or raise and secure the payment of money for any purpose including for the purposes of investment or of raising funds, including charging property as security for the repayment of money borrowed or as security for a grant or the discharge of an obligation (the Charity must comply as appropriate with the Charities Act 2011 if it wishes to mortgage land);
- 3.12 set aside funds for special purposes or as reserves against future expenditure;
- 3.13 invest the Charity's money not immediately required for its objects in or upon any investments, securities, or property;
- 3.14 arrange for investments or other property of the Charity to be held in the name of a nominee or nominees and pay any reasonable fee required;
- 3.15 lend money and give credit to, take security for such loans or credit and guarantee or give security for the performance of contracts by any person or company;
- 3.16 open and operate bank accounts and other facilities for banking and draw, accept, endorse, issue or execute promissory notes, bills of exchange, cheques and other instruments;
- 3.17 accept (or disclaim) gifts of money and any other property;
- 3.18 raise funds by way of subscription, donation or otherwise;
- 3.19 trade in the course of carrying out the objects of the Charity and carry on any other trade which is not expected to give rise to taxable profits;
- 3.20 incorporate and acquire subsidiary companies to carry on any trade;
- 3.21 subject to Article 4 (limitation on private benefits):
 - 3.21.1 engage and pay employees, consultants and professional or other advisers; and
 - 3.21.2 make reasonable provision for the payment of pensions and other retirement benefits to or on behalf of employees and their spouses and dependants;
- 3.22 establish and support or aid in the establishment and support of any other organisations and subscribe, lend or guarantee money or property for charitable purposes;
- 3.23 become a member, associate or affiliate of or act as trustee or appoint trustees of any other organisation (including without limitation any charitable trust of permanent endowment property held for any of the charitable purposes included in the Charity's objects);
- 3.24 undertake and execute charitable trusts;

- 3.25 impose restrictions, which may be revocable or irrevocable, on the use of any property of the Charity, including (without limitation) by creating permanent endowment;
- 3.26 amalgamate or merge with or acquire or undertake all or any of the property, liabilities and engagements of any body;
- 3.27 co-operate with charities, voluntary bodies, statutory authorities and other bodies and exchange information and advice with them;
- 3.28 pay out of the funds of the Charity the costs of forming and registering the Charity;
- 3.29 insure the property of the Charity against any foreseeable risk and take out other insurance policies as are considered necessary by the Trustees to protect the Charity;
- 3.30 provide indemnity insurance for the Trustees or any other officer of the Charity in accordance with, and subject to the conditions in, Section 189 of the Charities Act 2011 (provided that in the case of an officer who is not a Trustee, the second and third references to “charity trustees” in the said Section 189(1) shall be treated as references to officers of the Charity); and
- 3.31 do all such other lawful things as may further the Charity's objects.

LIMITATION ON PRIVATE BENEFITS

4. Limitation on private benefits

- 4.1 The income and property of the Charity shall be applied solely towards the promotion of its objects.

Permitted benefits to members

- 4.2 No part of the income and property of the Charity may be paid or transferred directly or indirectly by way of dividend, bonus or otherwise by way of profit to any member of the Charity. This shall not prevent any payment in good faith by the Charity of:
 - 4.2.1 any payments made to any member in his, her or its capacity as a beneficiary of the Charity;
 - 4.2.2 reasonable and proper remuneration to any member for any goods or services supplied to the Charity (including services performed by the member under a contract of employment with the Charity), provided that if such member is a Trustee Articles 4.3, 4.4 and 4.5 shall apply;
 - 4.2.3 interest at a reasonable and proper rate on money lent by any member to the Charity;
 - 4.2.4 any reasonable and proper rent for premises let by any member to the Charity; and
 - 4.2.5 any payments to a member who is also a Trustee which are permitted under Articles 4.3, 4.4 and 4.5.

Permitted benefits to Trustees and Connected Persons

4.3 No Trustee may:

- 4.3.1 sell goods, services or any interest in land to the Charity;
- 4.3.2 be employed by, or receive any remuneration from, the Charity; or
- 4.3.3 receive any other financial benefit from the Charity;

unless the payment is permitted by Articles 4.4 or 4.5 or authorised by the court or the Charity Commission.

4.4 A Trustee may receive the following benefits from the Charity:

- 4.4.1 a Trustee or person Connected to a Trustee may receive a benefit from the Charity in his, her or its capacity as a beneficiary of the Charity;
- 4.4.2 a Trustee or person Connected to a Trustee may be reimbursed by the Charity for, or may pay out of the Charity's property, reasonable expenses properly incurred by him, her or it when acting on behalf of the Charity;
- 4.4.3 a Trustee or person Connected to a Trustee may be paid reasonable and proper remuneration by the Charity for any goods or services supplied to the Charity on the instructions of the Trustees (excluding, in the case of a Trustee, the service of acting as Trustee and services performed under a contract of employment with the Charity) provided that this provision and Article 4.5.3 may not apply to more than half of the Trustees in any financial year (and for these purposes this provision shall be treated as applying to a Trustee if it applies to a person who is a person Connected to that Trustee);
- 4.4.4 a Trustee or person Connected to a Trustee may receive interest at a reasonable and proper rate on money lent to the Charity;
- 4.4.5 a Trustee or person Connected to a Trustee may receive reasonable and proper rent for premises let to the Charity;
- 4.4.6 the Charity may pay reasonable and proper premiums in respect of indemnity insurance effected in accordance with Article 3.30; and
- 4.4.7 a Trustee or other officer of the Charity may receive payment under an indemnity from the Charity in accordance with the indemnity provisions set out at Article 6;

provided that where benefits are conferred under Article 4.4, Article 21 (Conflicts of Interest) must be complied with by the relevant Trustee in relation to any decisions regarding the benefit.

Subsidiary Companies

4.5 A Trustee may receive the following benefits from any Subsidiary Company:

- 4.5.1 a Trustee or a person Connected to a Trustee may receive a benefit from any Subsidiary Company in his, her or its capacity as a beneficiary of the Charity or of any Subsidiary Company;

- 4.5.2 a Trustee or a person Connected to a Trustee may be reimbursed by any Subsidiary Company for, or may pay out of any Subsidiary Company's property, reasonable expenses properly incurred by him, her or it when acting on behalf of any Subsidiary Company;
- 4.5.3 a Trustee or a person Connected to a Trustee may be paid reasonable and proper remuneration by any Subsidiary Company for any goods or services supplied to any Subsidiary Company, with the prior approval of the Trustees, (including services performed under a contract of employment with any Subsidiary Company or otherwise) provided that this provision and Article 4.4.3 may not apply to more than half of the Trustees in any financial year (and for these purposes this provision shall be treated as applying to a Trustee if it applies to a person Connected to that Trustee);
- 4.5.4 a Trustee or a person Connected to a Trustee may, with the approval of the Trustees, receive interest at a reasonable and proper rate on money lent to any Subsidiary Company;
- 4.5.5 a Trustee or a person Connected to a Trustee may, with the approval of the Trustees, receive reasonable and proper rent for premises let to any Subsidiary Company;
- 4.5.6 any Subsidiary Company may pay reasonable and proper premiums in respect of indemnity insurance for its directors and officers; and
- 4.5.7 a Trustee or a person Connected to a Trustee may receive payment under an indemnity from any Subsidiary Company in accordance with the constitution of the relevant Subsidiary Company;

provided that the affected Trustee may not take part in any decision of the Trustees to approve a benefit under Articles 4.5.3, 4.5.4 or 4.5.5.

LIMITATION OF LIABILITY AND INDEMNITY

5. Liability of members

The liability of the Member is limited to £1, being the amount that the Member undertakes to contribute to the assets of the Charity in the event of its being wound up while he, she or it is a member or within one year after he, she or it ceases to be a member, for:

- 5.1 payment of the Charity's debts and liabilities contracted before he, she or it ceases to be a member;
- 5.2 payment of the costs, charges and expenses of winding up; and
- 5.3 adjustment of the rights of the contributories among themselves.

6. Indemnity

Without prejudice to any indemnity to which a Trustee may otherwise be entitled, every Trustee of the Charity shall be indemnified out of the assets of the Charity in relation to any liability incurred by him or her in that capacity but only to the extent permitted by the Companies Acts; and every other officer of the Charity may be indemnified out of the assets of the Charity in relation to any liability incurred by him or her in that capacity, but only to the extent permitted by the Companies Acts.

TRUSTEES

TRUSTEES' POWERS AND RESPONSIBILITIES

7. Trustees' general authority

Subject to the Articles, the Trustees are responsible for the management of the Charity's business, for which purpose they may exercise all the powers of the Charity.

8. Chair

8.1 The Trustees may appoint one of their number to be the Chair of the Trustees for such term of office as they determine and may at any time remove him or her from that office.

8.2 The Trustees may appoint one of their number to be the Vice-Chair of the Trustees for such term of office as they determine and may at any time remove him or her from that office.

9. Trustees may delegate

9.1 Subject to the Articles, the Trustees may delegate any of their powers or functions to any committee.

9.2 Subject to the Articles, the Trustees may delegate the implementation of their decisions or day to day management of the affairs of the Charity to any person or committee.

9.3 Any delegation by the Trustees may be:

9.3.1 by such means;

9.3.2 to such an extent;

9.3.3 in relation to such matters or territories; and

9.3.4 on such terms and conditions;

as they think fit.

9.4 The Trustees may authorise further delegation of the relevant powers, functions, implementation of decisions or day to day management by any person or committee to whom they are delegated.

9.5 The Trustees may revoke any delegation in whole or part, or alter its terms and conditions.

- 9.6 The Trustees may by power of attorney or otherwise appoint any person to be the agent of the Charity for such purposes and on such conditions as they determine.

10. Committees

10.1 In the case of delegation to committees:

- 10.1.1 the resolution making the delegation must specify those who shall serve or be asked to serve on the committee (although the resolution may allow the committee to make co-options up to a specified number);
- 10.1.2 the composition of any committee shall be entirely in the discretion of the Trustees and may include such of their number (if any) as the resolution may specify;
- 10.1.3 the deliberations of any committee must be reported regularly to the Trustees and any resolution passed or decision taken by any committee must be reported promptly to the Trustees and every committee must appoint a secretary for that purpose;
- 10.1.4 the Trustees may make such regulations and impose such terms and conditions and give such mandates to any committee as they may from time to time think fit; and
- 10.1.5 no committee shall knowingly incur expenditure or liability on behalf of the Charity except where authorised by the Trustees or in accordance with a budget which has been approved by the Trustees.

10.2 The meetings and proceedings of any committee shall be governed by the Articles regulating the meetings and proceedings of the Trustees so far as they apply and are not superseded by any regulations made by the Trustees.

11. Delegation of day to day management powers

In the case of delegation of the day to day management of the Charity to a chief executive or other manager or managers:

- 11.1 the delegated power shall be to manage the Charity by implementing the policy and strategy adopted by and within a budget approved by the Trustees and (if applicable) to advise the Trustees in relation to such policy, strategy and budget;
- 11.2 the Trustees shall provide any manager with a description of his or her role and the extent of his or her authority; and
- 11.3 any manager must report regularly to the Trustees on the activities undertaken in managing the Charity and provide them regularly with management accounts which are sufficient to explain the financial position of the Charity.

12. Delegation of investment management

The Trustees may delegate the management of investments to a Financial Expert or Experts provided that:

- 12.1 the investment policy is set down in Writing for the Financial Expert or Experts by the Trustees;
- 12.2 timely reports of all transactions are provided to the Trustees;

- 12.3 the performance of the investments is reviewed regularly with the Trustees;
- 12.4 the Trustees are entitled to cancel the delegation arrangement at any time;
- 12.5 the investment policy and the delegation arrangements are reviewed regularly;
- 12.6 all payments due to the Financial Expert or Experts are on a scale or at a level which is agreed in advance and are notified promptly to the Trustees on receipt; and
- 12.7 the Financial Expert or Experts must not do anything outside the powers of the Trustees.

13. Rules

- 13.1 The Trustees may from time to time make, repeal or alter such rules as they think fit as to the management of the Charity and its affairs. The rules shall be binding on all members of the Charity. No rule shall be inconsistent with the Companies Acts, the Articles or any rule of law.
- 13.2 The rules may regulate the following matters but are not restricted to them:
 - 13.2.1 the duties of any officers or employees of the Charity;
 - 13.2.2 the admission of members of the Charity and the benefits conferred on such members, and any subscriptions, fees or payments to be made by members;
 - 13.2.3 the conduct of members of the Charity in relation to one another, and to the Charity's employees and volunteers;
 - 13.2.4 the conduct of business of the Trustees or any committee (including, without limitation, how the Trustees make decisions and how such rules are to be recorded or communicated to Trustees);
 - 13.2.5 the procedure at general meetings;
 - 13.2.6 any of the matters or things within the powers or under the control of the Trustees; and
 - 13.2.7 generally, all such matters as are commonly the subject matter of company rules.
- 13.3 The Charity in general meeting has the power to alter, add to or repeal the rules.

DECISION-MAKING BY TRUSTEES

14. Trustees to take decisions collectively

Any decision of the Trustees must be either:

- 14.1 by decision of a majority of the Trustees present and voting at a quorate Trustees' meeting (subject to Article 19); or
- 14.2 a majority decision taken in accordance with Article 20.

15. Calling a Trustees' meeting

- 15.1 Two Trustees may (and the Secretary, if any, must at the request of two Trustees) call a Trustees' meeting.
- 15.2 A Trustees' meeting must be called by at least seven Clear Days' notice unless either:
 - 15.2.1 all the Trustees agree; or
 - 15.2.2 urgent circumstances require shorter notice.
- 15.3 Notice of Trustees' meetings must be given to each Trustee.
- 15.4 Every notice calling a Trustees' meeting must specify:
 - 15.4.1 the place, day and time of the meeting;
 - 15.4.2 the general nature of the business to be considered at such meeting; and
 - 15.4.3 if it is anticipated that Trustees participating in the meeting will not be in the same place, how it is proposed that they should communicate with each other during the meeting.
- 15.5 Notice of Trustees' meetings need not be in Writing.
- 15.6 Article 31 shall apply, and notice of Trustees' meetings may be sent by Electronic Means to an Address provided by the Trustee for the purpose.

16. Participation in Trustees' meetings

- 16.1 Subject to the Articles, Trustees participate in a Trustees' meeting, or part of a Trustees' meeting, when:
 - 16.1.1 the meeting has been called and takes place in accordance with the Articles; and
 - 16.1.2 they can each communicate to the others any information or opinions they have on any particular item of the business of the meeting (for example via telephone or video conferencing).
- 16.2 In determining whether Trustees are participating in a Trustees' meeting, it is irrelevant where any Trustee is or how they communicate with each other.
- 16.3 If all the Trustees participating in a meeting are not in the same place, they may decide that the meeting is to be treated as taking place wherever any of them is.

17. Quorum for Trustees' meetings

- 17.1 At a Trustees' meeting, unless a quorum is participating, no proposal is to be voted on, except a proposal to call another meeting.
- 17.2 The quorum for Trustees' meetings may be fixed from time to time by a decision of the Trustees, but it must never be less than two, and unless otherwise fixed it is two or one-third of the total number of Trustees, whichever is the greater.

- 17.3 If the total number of Trustees for the time being is less than the quorum required, the Trustees must not take any decision other than a decision:
- 17.3.1 to appoint further Trustees; or
 - 17.3.2 to call a general meeting so as to enable the members to appoint further Trustees.
- 18. Chairing of Trustees' meetings**
- The Chair, if any, or in his or her absence, the Vice Chair (if any) or, in both their absences, another Trustee nominated by the Trustees present shall preside as chair of each Trustees' meeting.
- 19. Casting vote**
- 19.1 If the numbers of votes for and against a proposal at a Trustees' meeting are equal, the chair of the meeting has a casting vote in addition to any other vote he or she may have.
- 19.2 Article 19.1 does not apply if, in accordance with the Articles, the chair of the meeting is not to be counted as participating in the decision-making process for quorum or voting purposes.
- 20. Majority decisions without a meeting**
- 20.1 The Trustees may, in the circumstances outlined in this Article, make a majority decision without holding a Trustees' meeting.
- 20.2 If:
- 20.2.1 a Trustee has become aware of a matter on which the Trustees need to take a decision;
 - 20.2.2 that Trustee has taken all reasonable steps to make all the other Trustees aware of the matter and the decision;
 - 20.2.3 the Trustees have had a reasonable opportunity to communicate their views on the matter and the decision to each other; and
 - 20.2.4 a majority of the Trustees vote in favour of a particular decision on that matter;
- a decision of the Trustees may be taken by majority and shall be as valid and effectual as if it had been taken at a Trustees' meeting duly convened and held.
- 20.3 Trustees participating in the taking of a majority decision otherwise than at a Trustees' meeting in accordance with this Article:
- 20.3.1 may be in different places, and may participate at different times; and
 - 20.3.2 may communicate with each other by any means.
- 20.4 The Chair, or such other Trustee as shall be appointed by the Trustees shall be the

chair of the process of decision-making in accordance with this Article. The process shall include:

- 20.4.1 circulation of the proposed decision with an indication of the time period for discussion and the date by which Trustees are asked to cast their votes;
 - 20.4.2 the nomination of a person to whom all Trustee's votes must be communicated;
 - 20.4.3 if a majority of the Trustees vote in favour of the decision, the nominated person shall communicate the decision to all the Trustees and the date of the decision shall be the date of the communication from the nominated person confirming formal approval; and
 - 20.4.4 the nominated person must prepare a minute of the decision in accordance with Article 35.
- 20.5 In the case of an equality of votes in any decision-making process in accordance with this Article, the chair shall be entitled to a casting vote in addition to any other vote he or she may have. But this does not apply if, in accordance with the Articles, the chair or specified Trustee is not to be counted as participating in the decision-making process for quorum, voting or agreement purposes.”

21. Trustee interests and management of conflicts of interest

Declaration of interests

- 21.1 Unless Article 21.2 applies, a Trustee must declare the nature and extent of:
- 21.1.1 any direct or indirect interest which he or she has in a proposed transaction or arrangement with the Charity; and
 - 21.1.2 any duty or any direct or indirect interest which he or she has which conflicts or may conflict with the interests of the Charity or his or her duties to the Charity.
- 21.2 There is no need to declare any interest or duty of which the other Trustees are, or ought reasonably to be, already aware.

Participation in decision-making

- 21.3 If a Trustee's interest or duty cannot reasonably be regarded as likely to give rise to a conflict of interest or a conflict of duties with or in respect of the Charity, he or she is entitled to participate in the decision-making process, to be counted in the quorum and to vote in relation to the matter. Any uncertainty about whether a Trustee's interest or duty is likely to give rise to a conflict shall be determined by a majority decision of the other Trustees taking part in the decision-making process.
- 21.4 If a Trustee's interest or duty gives rise (or could reasonably be regarded as likely to give rise) to a conflict of interest or a conflict of duties with or in respect of the Charity, he or she may participate in the decision-making process and may be counted in the quorum and vote unless:

- 21.4.1 the decision could result in the Trustee or any person who is Connected with him or her receiving a benefit other than:
- (a) any benefit received in his, her or its capacity as a beneficiary of the Charity (as permitted under Article 4.4.1) and which is available generally to the beneficiaries of the Charity;
 - (b) the payment of premiums in respect of indemnity insurance effected in accordance with Article 3.30;
 - (c) payment under the indemnity set out at Article 6; and
 - (d) reimbursement of expenses in accordance with Article 4.4.2; or
- 21.4.2 a majority of the other Trustees participating in the decision-making process decide to the contrary,

in which case he or she must comply with Article 21.5.

- 21.5 If a Trustee with a conflict of interest or conflict of duties is required to comply with this Article 21.5, he or she must:

- 21.5.1 take part in the decision-making process only to such extent as in the view of the other Trustees is necessary to inform the debate;
- 21.5.2 not be counted in the quorum for that part of the process; and
- 21.5.3 withdraw during the vote and have no vote on the matter.

Continuing duties to the Charity

- 21.6 Where a Trustee or person Connected with him or her has a conflict of interest or conflict of duties and the Trustee has complied with his or her obligations under these Articles in respect of that conflict:
- 21.6.1 the Trustee shall not be in breach of his or her duties to the Charity by withholding confidential information from the Charity if to disclose it would result in a breach of any other duty or obligation of confidence owed by him or her; and
 - 21.6.2 the Trustee shall not be accountable to the Charity for any benefit expressly permitted under these Articles which he or she or any person Connected with him or her derives from any matter or from any office, employment or position.

22. Register of Trustees' interests

The Trustees must cause a register of Trustees' interests to be kept.

23. Validity of Trustee actions

All acts done by a person acting as a Trustee shall, even if afterwards discovered that there was a defect in his or her appointment or that he or she was disqualified from holding office or had vacated office, be as valid as if such person had been duly appointed and was qualified and had continued to be a Trustee.

APPOINTMENT AND RETIREMENT OF TRUSTEES

24. Number of Trustees

There shall be at least three Trustees, at least two of which shall be Independent Trustees.

25. Appointment of Trustees and retirement of Trustees by rotation

- 25.1 Those persons notified to the Registrar of Companies as the first directors of the Charity shall be the first Trustees.

Appointment of Trustees

- 25.2 Any person who is willing to act as a Trustee, and who would not be disqualified from acting under the provisions of Article 26, may be appointed to be a Trustee by the Member serving written notice on the Charity provided that the Member shall ensure that there at least two Independent Trustees at all times;

- 25.3 The Trustees may, without reference to the Member, directly appoint further Trustees if:

25.3.1 the number of Trustees falls below the minimum number of Trustees required by Article 24;

25.3.2 the Trustees first give the Member 28 days' notice to make an appointment or appointments, unless urgent circumstances require a shorter notice period; and

25.3.3 the Member fails to appoint sufficient Trustees having been given written notice of the vacancy or vacancies.

Automatic retirement

- 25.4 Each Trustee shall retire from office at the next Trustees' meeting following the third anniversary of his or her most recent appointment or reappointment. If the Charity does not fill the vacancy the retiring Trustee shall, if willing to act, be deemed to have been re-appointed unless at the meeting it is resolved not to fill the vacancy or unless a resolution for the re-appointment of the Trustee is put to the meeting and lost. If he or she is not re-appointed, he or she shall retain office until the meeting appoints someone in his or her place, or if it does not do so, until the end of the meeting.

Maximum term

- 25.5 A Trustee who has served for three consecutive terms of office must take a break from office and may not be reappointed until the earlier of:

- 25.5.1 the second anniversary of the commencement of his or her break from office; and
- 25.5.2 if applicable, the annual general meeting following the annual general meeting at which his or her break from office commenced.

For the purposes of this Article 25.57 a term of office shall not include a term for which the Trustee was appointed by a decision of the Trustees.

Minimum age

- 25.6 No person may be appointed as a Trustee unless he or she has reached the age of 16 years.

Timing of retirement

- 25.7 A Trustee who retires at an annual general meeting and who is not reappointed shall retain office until either:
 - 25.7.1 the meeting appoints someone in his or her place; or
 - 25.7.2 (if no one is appointed in his or her place) until the end of the meeting.

General

- 25.8 A Trustee may not appoint an alternate director or anyone to act on his or her behalf at meetings of the Trustees.

26. Disqualification and removal of Trustees

A Trustee shall cease to hold office if:

- 26.1 he or she ceases to be a director by virtue of any provision of the Companies Act 2006, or is prohibited from being a director by law;
- 26.2 he or she is disqualified under the Charities Act 2011 from acting as a trustee of a charity;
- 26.3 the Trustees reasonably believe he or she has become physically or mentally incapable of managing his or her own affairs and they resolve that he or she be removed from office;
- 26.4 notification is received by the Charity from him or her that he or she is resigning from office, and such resignation has taken effect in accordance with its terms (but only if at least three Trustees will remain in office when such resignation has taken effect);
- 26.5 he or she fails to attend three consecutive meetings of the Trustees and the Trustees resolve that he or she be removed for this reason; or
- 26.6 at a meeting of the Trustees at which at least half of the Trustees are present, a resolution is passed that he or she be removed from office. Such a resolution shall not

be passed unless he or she has been given at least 14 Clear Days' notice that the resolution is to be proposed, specifying the circumstances alleged to justify removal from office, and has been afforded a reasonable opportunity of either (at his or her option) being heard by or of making written representations to the Trustees.

MEMBERS

BECOMING AND CEASING TO BE A MEMBER

27. Membership

- 27.1 The Member shall be the sole member of the Charity.
- 27.2 The Member may by resolution of its directors authorise a person or persons to act as its authorised representative or representatives at any meeting of the Charity or to execute resolutions on behalf of the Charity. Evidence of the appointment of the representative must be provided in the form of an original or certified copy of the resolution of the directors or other governing body of the Member.

28. Termination of membership

- 28.1 Membership is not transferable.
- 28.2 The Member shall cease to be a member:
- 28.2.1 if the Member goes into liquidation other than for the purpose of a solvent reconstruction or amalgamation, has an administrator or a receiver or an administrative receiver appointed over all or any part of its assets, or has an order made or a resolution passed for its winding up; or
 - 28.2.2 on the expiry of at least seven Clear Days' notice given by the Member to the Charity of its intention to withdraw.
- 28.3 In the case of either event specified in Article 29.2 the Member shall by written notice to the Trustees nominate the person(s) (including corporate person(s)) to be appointed as member(s) of the Charity in place of the Member and the Trustees shall take all steps in their power to admit such person(s) as a member of the Charity. In the event that such nomination is not made the Trustees shall after consultation (as far as is practicable) with representatives of the former Member admit another person or persons willing to become the member or members of the Charity.
- 28.4 The Trustees shall have no power other than that specified in Article 29.3 to admit members of the Charity.

MEETINGS AND COMPANY RESOLUTIONS

29. General Meetings

- 29.1 The Board may call a general meeting at any time, such meetings to be held in accordance with the provisions in the Companies Acts.
- 29.2 The quorum at a general meeting shall be one, consisting of an authorised representative of the Member.

30. Members' decisions

- 30.1 Decisions of the Member can be made:
- 30.1.1 by the Member (either itself or via its authorised representative) notifying the

Charity of a decision the Member has made. Such notifications shall be in writing and made within 14 days of the date of the Members' decision;

- 30.1.2 by passing a written resolution in accordance with the provisions of the Companies Acts which is signed by an authorised representative of the Member; or
 - 30.1.3 by passing a resolution at a general meeting convened and held in accordance with the provisions of the Companies Acts.
- 30.2 Communications in relation to written resolutions shall be sent to the Charity's auditors in accordance with the Companies Acts.

ADMINISTRATIVE ARRANGEMENTS AND MISCELLANEOUS

31. Communications by the Charity

Methods of communication

- 31.1 Subject to the Articles and the Companies Acts, any Document or information (including any notice, report or accounts) sent or supplied by the Charity under the Articles or the Companies Acts may be sent or supplied in any way in which the Companies Act 2006 provides for Documents or information which are authorised or required by any provision of that Act to be sent or supplied by the Charity, including without limitation:
- 31.1.1 in Hard Copy Form;
 - 31.1.2 in Electronic Form; or
 - 31.1.3 by making it available on a website.
- 31.2 Where a Document or information which is required or authorised to be sent or supplied by the Charity under the Companies Acts is sent or supplied in Electronic Form or by making it available on a website, the recipient must have agreed that it may be sent or supplied in that form or manner or be deemed to have so agreed under the Companies Acts (and not revoked that agreement). Where any other Document or information is sent or supplied in Electronic Form or made available on a website the Trustees may decide what agreement (if any) is required from the recipient.
- 31.3 Subject to the Articles, any notice or Document to be sent or supplied to a Trustee in connection with the taking of decisions by Trustees may also be sent or supplied by the means which that Trustee has asked to be sent or supplied with such notices or Documents for the time being.

Deemed delivery

- 31.4 The Member present in person or by proxy or via their authorised representative in accordance with Article 27.2 at a meeting of the Charity shall be deemed to have received notice of the meeting and the purposes for which it was called.
- 31.5 Where any Document or information is sent or supplied by the Charity to the Member:

- 31.5.1 where it is sent by post it is deemed to have been received 48 hours (including Saturdays, Sundays, and Public Holidays) after it was posted;
- 31.5.2 where it is sent or supplied by Electronic Means, it is deemed to have been received on the same day that it was sent;
- 31.5.3 where it is sent or supplied by means of a website, it is deemed to have been received:
 - (a) when the material was first made available on the website; or
 - (b) if later, when the recipient received (or is deemed to have received) notice of the fact that the material was available on the website.
- 31.6 Subject to the Companies Acts, a Trustee or any other person (other than in their capacity as a member) may agree with the Charity that notices or Documents sent to that person in a particular way are deemed to have been received within a specified time, and for the specified time to be less than 48 hours.

Failed delivery

- 31.7 Where any Document or information has been sent or supplied by the Charity by Electronic Means and the Charity receives notice that the message is undeliverable:
 - 31.7.1 if the Document or information has been sent to a member or Trustee and is notice of a general meeting of the Charity, the Charity is under no obligation to send a Hard Copy of the Document or information to the member's or Trustee's postal address as shown in the Charity's register of members or Trustees, but may in its discretion choose to do so;
 - 31.7.2 in all other cases, the Charity shall send a Hard Copy of the Document or information to the member's postal address as shown in the Charity's register of members (if any), or in the case of a recipient who is not a member, to the last known postal address for that person (if any); and
 - 31.7.3 the date of service or delivery of the Documents or information shall be the date on which the original electronic communication was sent, notwithstanding the subsequent sending of Hard Copies.

Exceptions

- 31.8 Copies of the Charity's annual accounts and reports need not be sent to a person for whom the Charity does not have a current Address.
- 31.9 Notices of general meetings need not be sent to a member who does not register an Address with the Charity, or who registers only a postal address outside the United Kingdom, or to a member for whom the Charity does not have a current Address.

32. Communications to the Charity

The provisions of the Companies Acts shall apply to communications to the Charity.

33. Secretary

A Secretary may be appointed by the Trustees for such term, at such remuneration and upon such conditions as they may think fit, and may be removed by them. If there is no Secretary:

- 33.1 anything authorised or required to be given or sent to, or served on, the Charity by being sent to its Secretary may be given or sent to, or served on, the Charity itself, and if addressed to the Secretary shall be treated as addressed to the Charity; and
- 33.2 anything else required or authorised to be done by or to the Secretary of the Charity may be done by or to a Trustee, or a person authorised generally or specifically in that behalf by the Trustees.

34. Irregularities

The proceedings at any meeting or on the taking of any poll or the passing of a written resolution or the making of any decision shall not be invalidated by reason of any accidental informality or irregularity (including any accidental omission to give or

any non-receipt of notice) or any want of qualification in any of the persons present or voting or by reason of any business being considered which is not specified in the notice.

35. Minutes

The Trustees must cause minutes to be made:

- 35.1 of all appointments of officers made by the Trustees;
- 35.2 of all resolutions of the Charity and of the Trustees (including, without limitation, decisions of the Trustees made without a meeting); and
- 35.3 of all proceedings at meetings of the Charity and of the Trustees, including the names of the Trustees present at each such meeting;

and any such minute, if purported to be signed (or in the case of minutes of Trustees' meetings signed or authenticated) by the chair of the meeting at which the proceedings were had, or by the chair of the next succeeding meeting, shall, as against any member or Trustee of the Charity, be sufficient evidence of the proceedings.

36. Records and accounts

- 36.1 The Trustees shall comply with the requirements of the Companies Acts and of the Charities Act 2011 as to maintaining a members' register, keeping financial records, the audit or examination of accounts and the preparation and transmission to the Registrar of Companies and the Charity Commission of:

- 36.1.1 annual reports;

- 36.1.2 annual returns; and

- 36.1.3 annual statements of account.

- 36.2 Except as provided by law or authorised by the Trustees or an ordinary resolution of the Charity, no person is entitled to inspect any of the Charity's accounting or other records or Documents merely by virtue of being a member.

37. Exclusion of model articles

The relevant model articles for a company limited by guarantee are hereby expressly excluded.

WINDING UP

38. Winding up

- 38.1 At any time before, and in expectation of, the winding up or dissolution of the Charity, the Member of the Charity or, subject to any resolution of the Member, the Trustees, may resolve that any net assets of the Charity after all its debts and liabilities have been paid, or provision made for them, shall on the dissolution or winding up of the Charity be applied or transferred in any of the following ways:

38.1.1 directly for the objects of the Charity; or

38.1.2 to any institution or institutions which is or are regarded as charitable under the law of every part of the United Kingdom:

(a) for purposes similar to the objects of the Charity; or

(b) for use for particular purposes that fall within the objects of the Charity.

- 38.2 In no circumstances shall the net assets of the Charity be paid to or distributed among the members of the Charity under this Article 38 (except to a member that is itself an institution chosen to benefit under this Article 38).

- 38.3 If no resolution is passed in accordance with Article 38.1 the net assets of the Charity shall be applied for such purposes regarded as charitable under the law of every part of the United Kingdom as are directed by the Charity Commission.

SCHEDULE
INTERPRETATION

Defined terms

1. In the Articles, unless the context requires otherwise, the following terms shall have the following meanings:

Term	Meaning
1.1 “Address”	includes a postal or physical address and a number or address used for the purposes of sending or receiving Documents or information by Electronic Means;
1.2 “Articles”	the Charity's articles of association;
1.3 “Chair”	has the meaning given in Article 8;
1.4 “Charity”	Operation Fistula (UK);
1.5 “Clear Days”	in relation to the period of a notice, that period excluding the day when the notice is given or deemed to be given and the day for which it is given or on which it is to take effect;
1.6 “Companies Acts”	the Companies Acts (as defined in Section 2 of the Companies Act 2006), in so far as they apply to the Charity;
1.7 “Connected”	any person falling within one of the following categories: (a) any spouse, civil partner, parent, child, brother, sister, grandparent or grandchild of a Trustee; or (b) the spouse or civil partner of any person in (a); or (c) any other person in a relationship with a Trustee which may reasonably be regarded as equivalent to such a relationship as is mentioned at (a) or (b); or (d) any company, partnership or firm of which a Trustee is a paid director, member, partner or employee, or shareholder holding more than 1% of the capital;
1.8 “Document”	includes summons, notice, order or other legal process and registers and includes, unless otherwise specified, any document sent or supplied in Electronic Form;
1.9 “Electronic Form”	and have the meanings respectively given to them in

Term	Meaning
“Electronic Means”	Section 1168 of the Companies Act 2006;
1.10 “Financial Expert”	an individual, company or firm who, or which, is authorised to give investment advice under the Financial Services and Markets Act 2000;
1.11 “Hard Copy” and “Hard Copy Form”	have the meanings respectively given to them in the Companies Act 2006;
1.12 Independent Trustee	means a Trustee who is neither a trustee, director, employee or consultant of the Member or who has anyone Connected to himself or herself acting in those positions;
1.13 Member	means the sole member of the Charity, namely Operation Fistula, a not for profit organisation registered in the United States of America as a s501(c)(3) organisation with IRS number 35-2326522 of 401 Congress Avenue, Suite 1540, Austin, Texas 78701 or any successor organisation admitted in accordance with Article 29.
1.14 “Public Holiday”	means Christmas Day, Good Friday and any day that is a bank holiday under the Banking and Financial Dealings Act 1971 in the part of the United Kingdom where the company is registered;
1.15 “Secretary”	the secretary of the Charity (if any);
1.16 “Subsidiary Company”	any company in which the Charity holds more than 50% of the shares, controls more than 50% of the voting rights attached to the shares or has the right to appoint a majority of the board of the company;
1.17 “Trustee”	a director of the Charity, and includes any person occupying the position of director, by whatever name called;
1.18 Vice-Chair	means the vice-chair of the Charity appointed in accordance with clause 8.2
1.19 “Writing”	the representation or reproduction of words, symbols or other information in a visible form by any method or combination of methods, whether sent or supplied in Electronic Form or otherwise.
2.	Subject to paragraph 3 of this Schedule, any reference in the Articles to an enactment includes a reference to that enactment as re-enacted or amended from time to time and to any subordinate legislation made under it.

3. Unless the context otherwise requires, words or expressions contained in the Articles which are not defined in paragraph 1 above bear the same meaning as in the Companies Act 2006 as in force on the date when the Articles became binding on the Charity.